

Franciscus Dylan Rosario,
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Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

CSAA Insurance Exchange;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631802

**OBJECTIONS TO
PROPOSED ORDER**

Hearing: August 26, 2026

Time: 9:00 a.m.

Dept.: 302

**AUTHORITY TO FILE AND AUTHORITY OF THE CLERK TO AC-
CEPT**

1. Plaintiff appears in propria persona under Code of Civil Procedure section 1014 and Cal. Const. art. I, sections 3 and 16.
2. This paper is filed under Code of Civil Procedure section 1005, subdivision (b); Code of Civil Procedure section 1010; California Rules of Court, rules 3.1110 and 3.1113; and Code of Civil Procedure sections 391 through 391.7 as applicable to the relief opposed.
3. The Clerk's authority to accept this paper is under Government Code sections 68150 and 69845 and California Rules of Court, rules 2.100 through 2.111, 2.118, 2.119, 2.256, and 2.257. Rejection is limited to the enumerated technical grounds in California Rules of Court, rules 2.118 and 2.119; this paper does not present any of those grounds.

1 4. The Court’s authority to consider the substance is under Code of Civil Procedure sections 391
2 through 391.7 and California Rules of Court, rules 3.1110 and 3.1113.

3 5. This paper is timely filed for the August 26, 2026 hearing under Code of Civil Procedure
4 section 1005, subdivision (b), and California Rules of Court, rule 3.1300.

5 Hearing: August 26, 2026, 9:00 a.m., Dept. 302.

6 **I. INTRODUCTION**

7 Defendant lodged a three-page [Proposed] Order that would, if signed, (1) grant the motion, (2)
8 declare Plaintiff a vexatious litigant under Code of Civil Procedure section 391(b), (3) order se-
9 curity in a blank amount under section 391.3 “in all pending actions in any Court in the State of
10 California,” (4) require posting within 15 days in pending actions and concurrently with any new
11 California action, and (5) subject any filing Plaintiff submits to court screening and approval before
12 service in any action Plaintiff initiates.

13 Plaintiff objects to every operative paragraph. The proposed order is unauthorized on this record,
14 overbroad as a matter of statute, and incompatible with the prefiling-order scheme in section 391.7
15 and with due process.

16 **II. OBJECTIONS TO SPECIFIC PARAGRAPHS**

17 **OBJECTION TO PARAGRAPH 1 (“DEFENDANT’S MOTION IS GRANTED”)**

18 **Grounds:** The motion should be denied for the reasons in Plaintiff’s Opposition Memorandum. A
19 blanket “granted” line presupposes findings the Court has not made and that the evidence does not
20 support under sections 391(b)(2), 391(b)(3), and 391.3.

21 **Request:** Strike Paragraph 1; enter an order denying the motion.

22 **OBJECTION TO PARAGRAPH 2 (VEXATIOUS DESIGNATION UN- 23 DER SECTION 391(B))**

24 **Grounds:** Paragraph 2 does not specify which subdivision of section 391(b) is found, does not
25 recite the statutory elements, and does not tie any finding to proof. Section 391(b)(2) fails (wrong
26 primary right, wrong defendant, incomplete finality). Section 391(b)(3) fails (*Morton* flagrant-
27 abuse standard; volume is not frivolousness). (*Morton v. Wagner* (2007) 156 Cal.App.4th 963,

971-972.)

Request: Strike Paragraph 2.

OBJECTION TO PARAGRAPH 3 (BLANK SECURITY IN ALL PENDING CALIFORNIA ACTIONS)

Grounds:

1. **Blank amount.** Ordering security in the amount of “\$_____” without a supported determination of amount is improper. Section 391.3 contemplates security tied to the litigation against the moving defendant, not an open blank.
2. **All pending actions statewide.** Section 391.3 security, when available, is ordered in the action in which the motion is made for the benefit of the moving defendant. Extending a blank bond to “all pending actions in any Court in the State of California” exceeds section 391.3 and invades the separate machinery of section 391.7.
3. **Dual predicate missing.** Security under section 391.3 requires both a vexatious finding and no reasonable probability of prevailing. Neither predicate is met.

Request: Strike Paragraph 3.

OBJECTION TO PARAGRAPH 4 (15-DAY POSTING; CONCURRENT POSTING WITH ANY NEW ACTION)

Grounds:

1. The 15-day statewide posting command depends on the invalid Paragraph 3 bond.
2. Requiring security “concurrently with any new actions he files in any Court in the State of California” is a de facto statewide prefiling financial barrier. That remedy, if ever available, is governed by section 391.7’s prefiling-order procedures, not by a proposed order on a single-case section 391.3 motion.
3. The term would chill meritorious filings, including appellate and remand proceedings and actions on distinct primary rights, without the statutory safeguards section 391.7 requires.

Request: Strike Paragraph 4.

OBJECTION TO PARAGRAPH 5 (UNIVERSAL PRE-SERVICE SCREENING)

Grounds: Paragraph 5 states that “any filings Plaintiff submits to the Court are subject to Court screening and approval, prior to being served on any party to any Action Plaintiff initiates.” That is a universal prefiling / pre-service screen.

Code of Civil Procedure section 391.7 authorizes a prefiling order under defined procedures: the vexatious litigant may be required to obtain leave of the presiding judge before filing new litigation, with statutory consequences for filing without leave. Defendant’s Paragraph 5:

- Omits section 391.7’s procedural structure;
- Extends screening to “any filings” and to service timing in “any Action,” not merely commencement of new litigation;
- Is not limited to this Case No. CGC-25-631802;
- Would operate as a prior restraint on access to the courts without the notice and findings section 391.7 contemplates.

Due process does not permit a status-based statewide filing screen entered as a trailing paragraph on a proposed order without compliance with the statute that creates that extraordinary remedy. (*Shalant v. Girardi* (2011) 51 Cal.4th 1164, 1169-1170 [purpose and limits of the statutory scheme].)

Request: Strike Paragraph 5.

OBJECTION TO BLANK “IT IS FURTHER ORDERED” LINES

Grounds: The proposed order leaves additional blank lines for unspecified further orders. Open-ended blanks invite relief not noticed in the motion.

Request: Strike the blank further-order lines; limit any order to denial of the motion.

III. STATEWIDE SCREENING REWARDS THE PARTY THAT MULTIPLIED THE DOCKET

Paragraphs 3 through 5 would impose statewide bond and pre-service screening based in substantial part on docket “volume.” The register of actions shows that Defendant filed three noticed motions against the FAC (anti-SLAPP; demurrer; section 436 strike) and opposed Plaintiff’s leave /

SAC request, thereby multiplying responsive filings. Entering extreme statewide screening on that record rewards the party that created the paper war and punishes the party that was obligated to respond. That result is inequitable and incompatible with section 391.7's carefully limited prefiling scheme. (See Plaintiff's Opposition MPA Argument VI.)

Statewide screening would also punish Plaintiff's lodging of statutes, RFJNs, and notices of controlling or adverse authority. Under the evidence-practice framing reflected in Wong RT 11 (pp. 7-8; Tx 79843794 / 79830359 / 79843899), propositions not entered as evidence are not to be considered as evidence, period. Lodging law so the Court has a complete record follows that logic; converting that practice into a basis for statewide pre-service screening is inequitable and is not authorized by section 391.7. (See Opp. MPA Argument VII; Plaintiff's Exhibit D.) Plaintiff does not ask this Department to reverse Wong or to decide A173827.

IV. SECTION 391.7 OVERBREADTH SUMMARY

Proposed

term	Statutory problem
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Blank "\$_____"	No supported amount; not tied to this action alone
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bond

Bond in all pending California actions	Exceeds section 391.3; bypasses section 391.7
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Bond with every new California filing	De facto prefiling order without section 391.7 process
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Proposed

term Statutory problem

Pre-service Conflicts with section 391.7 machinery and due process; rewards invited volume
screen-
ing of
any filing
statewide

V. CONCLUSION

Plaintiff respectfully requests that the Court:

1. Sustain the foregoing objections;
2. Decline to sign Defendant's proposed order;
3. Enter an order denying the motion to declare Plaintiff a vexatious litigant and denying security;
4. If the Court were to grant any relief (which Plaintiff opposes), limit it strictly to this action and to terms authorized by statute after required findings, with no blank amount, no statewide bond, and no universal pre-service screen.

Dated: July 22, 2026



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Plaintiff, In Pro Per

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VALIDATION VERIFICATION

(CRC 2.100 through 2.111; CRC 2.256(b); CRC 2.257; CCP § 1010.6 / CRC 1.21)

I, the undersigned Plaintiff in propria persona, verify under penalty of perjury under the laws of the State of California that:

1. This paper complies with California Rules of Court, rules 2.100 through 2.111 (format), rule 2.256(b) (text-searchable PDF), and rule 2.257 (signature).
2. Electronic service of this paper is made in the context of Code of Civil Procedure section 1010.6 and California Rules of Court, rule 1.21.
3. Cohort-wide OCR, bookmark, and SHA-256 attestations for the July 21 / August 2026 vexatious-litigant opposition packet are set out in the concurrently filed Declaration of Compliance (CRC 2.256 / 3.1110), which is not duplicated here.

Dated: July 22, 2026



Plaintiff in propria persona